HCCOM E113/25

26/02/2025
Before Hon. Noelle Kyanya (DR)
In Chambers
C/A Kibe

Deputy registrar- This is transferred from the Judicial Review Division .
Matter is placed before Presiding Judge in chambers for allocation to a court Notice To Issue of new date.

Signature Deputy Registrar
26/2/25

Date : 29.4.2025
CORAM:
Before Hon Njoroge Benjamin K
C/A :luyia

Mr Adoli : is for he ex parte.
No appearance mr Munene for the Interested Party.
No appearance for the respondent

Mr Adoli : its a transfer from the Judicial Review division .Its a mention to take directions on how to proceed with judicial review.
Latter Mr Munene . We have filed a notice for further particulars directed towards Mr Adoli's client .We are yet to recieve a response.

Mr Adoli : We have recieved the request .We seek 14 days to file the document
Mr Munene: "We require the document"

Court Order:
Court : Mention on 24/6/2025 to confirm that Mr adoli has been able to award the documents sought .The respondents to be served as a file an all.

Signature: Benjamin Njoroge -Judge.
29/4/2023

Date:24/6/2025

Coram: Before Hon. Njoroge Benjamin K – J

Court Assistant (C/A): Luyai – C/A

Mr. Adoli for the Ex parte Applicant.
Mr. Munene for the Interested Parties.

Mr. Adoli: “We have furnished the documents sought
Mr. Munene: “I need 21 days to respond.

CT(Ct:):The Interested Parties to file their response within 21 days
The Ex parte Applicant to file written submissions within 14 days.
The Interested Parties to file submissions within 14 days.
Mention on 7/10/2025 to confirm compliance by Counsel.

Signed:
Njoroge Benjamin -Judge
24/6/2025

HCC 113/25
7/10/25

Coram: Before Justice Njoroge Benjamin K
Court Assistant (C/A): WabwirE

Mr. Adoli for the Ex parte Applicant
Mr. Munene for the Interested Parties

Mr. Adoli: “The Ex parte applicant has filed Submissions.”

Mr. Munene: “We will not be filing any Submissions. We rely on Replying Affidavit sworn on 15/7/2025 by Felix Njuguna Mbugua.”

Mr. Adoli: “16/2/2026 BK.”

Signed
Benjamin Njuguna -Judge
7/10/2025

15/02/25
Coram: Before Justice Njoroge Benjamin K
Court Assistant (C/A): Wabwire / John Paul
Mr. Adoli for the Ex parte Applicant
Mr. Munene for Interested Parties Order

CT: 9.45 AM for

Signed:
Benjamin Njoroge

Time: 12:14 PM
Coram: As Before

Mr. Adoli: We have filed our Submissions dated 18/9/2025 in respect to the Notice of Motion 18/11/2024. We rely on the documents filed at the Lean Stage.For more than 20 years, the Ex parte applicants have been the Directors of Kiandu Njakiuya.

These documents have not been relanted by the registrar. The Interested Parties say our documents filed. They haven't said how. See our Case Law: Factual evidence to be controverted by factual evidence.
The CR-12 changed in 2024. No evidence how appointed in 2024; Nothing to show how appointed. No Minutes
Change of Director is guided by Section 139 of the Companies Act. See Francis Asunda vs. Kisumu Water. A notice to be issued and a meeting held for change of Directors.
Allow the Notice of motion to protect the interest of Company and the rights of its members.

Restore the Directors.Thats allocation

signed out
16/2/2026

Mr. Munene: We rely on Notice to Produce dated 25/3/2025 and the Replying Affidavit sworn by Cyrus Njuguna Mbugua of 16/7/2025.
We rely entirely on that.

signed
Benjamin Njoroge - Judge
16/2/2026

Court Order
Court: Ruling on 30/4/2026 Before court.

Date: 30/04/26
BEFORE Hon. Justice Njoroge Benjamin K 16/2/2026
Court Assistant (C/A): John Paul

Mr. Adoli for the Ex parte Applicant
No appearance for the Interested Parties

Court
Court :Ruling not ready. Deferred to 28/5/2026. The Registrar & Interested Parties to be served with a fresh notice and file A/S

Signed
Benjamin Njoroge-Judge

Date: 28/5/26

Coram: Before Hon. Benjamin Njoroge
Court Assistant (C/A): Susan

Mr. Adoli for Ex parte Applicant
Mr. Munene for Interested Parties

Court Rulling deferred to 6/7/2026. The …. & parties interested to be served.
Court: Ruling is read and delivered virtualy dated 06/7/2026.
Court :Mention on 2/11/2026 before court to confirm the status.

File marked as closed

signed:
06/7/2026